

Tentative Rulings for Department 503

Begin at the next page

(49)

Tentative Ruling

Re: **Copher v. Manriquez et al.**
Superior Court Case No. 24CECG01553

Hearing Date: July 7, 2026 (Dept. 503)

Motion: By Plaintiff Johnnie Copher to Enforce Settlement Agreement

**If oral argument is timely requested, it will be entertained on
Tuesday, July 21 2026, at 3:30 p.m. in Department 503.**

Tentative Ruling:

To grant the motion to enforce settlement. (Code Civ. Proc., § 664.6.) To grant attorney fees and costs of \$493.25. Plaintiff Johnnie Copher is directed to submit to this court, within 10 days of service of the minute order adopting this tentative ruling, a proposed judgment.

Explanation:

Plaintiff Johnnie Copher ("Plaintiff") moves for enforcement of a settlement agreement under Code of Civil Procedure section 664.6 against defendants Joshua Manriquez and Sylvia Rodriguez ("Defendants").

Code of Civil Procedure section 664.6 states in pertinent part: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court . . . for settlement of the case . . . the court, upon motion, may enter judgment pursuant to the terms of the settlement." Due to the summary nature of the statute authorizing judgment to enforce a settlement agreement, strict compliance with its requirements is prerequisite to invoking the power of the court to impose a settlement agreement. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 984.)

On March 18, 2025, Plaintiff and Defendants entered into a written settlement agreement resolving the case. (Miser Decl., ¶ 2, Exh. A.) In the settlement agreement, Defendants agreed to pay \$3,000 to Plaintiff in monthly installments of \$250 starting April 1, 2025. (*Id.*, ¶ 3, Exh. A.) Defendants have failed to make any payments and currently owe Plaintiff the full amount of \$3,000. (*Id.*, ¶¶ 4-5.)

Defendants have filed no opposition to this motion. Defendants agreed to and have breached the settlement agreement. Plaintiff has met the requirements of Code of Civil Procedure 664.6. Accordingly, the motion to enforce settlement is granted.

Plaintiff is also seeking attorney fees and costs based on being the prevailing party and Defendants' breach of the settlement agreement. The settlement agreement states in paragraph 9 in pertinent part, "In the event of a breach of this agreement, the prevailing party in any motion or action shall be entitled to reasonable attorneys fees and costs." (Miser Decl., Exh. A.) Plaintiff seeks \$705.75 based on 1.5 hours of attorney time

at \$425 an hour and \$65.25 in costs. Plaintiff's 1.5 hours were based on one hour of drafting the motion and .5 hours in anticipation of filing a reply. As no opposition was filed, the court reduces the attorney time to one hour. Accordingly, the court awards \$493.25 in combined attorney fees and costs.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/6/2026.
(Judge's initials) (Date)